

Re: ALPR program — aligning audits and disclosures with existing policy

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Date 2026-05-05 22:51

Chief Barberini and Council members,

After our discussion earlier today and the offer to schedule a meeting, it felt like we were engaging on these issues in good faith. Hours later, I received the Department's 5/5/2026 response to PRA W012462-040226. I need to flag a serious disconnect.

At the current production pace (32 records produced in 33 days, against the Department's own 211,872-document scope), completing this PRA would take approximately 600 years. The Department has also informed me that this PRA will be prioritized over my other open PRAs. Together, those two things mean the oversight records get deferred indefinitely.

This does not feel like a good-faith, diligent effort, and it stands in contrast to the tone of today's conversation.

Why this PRA exists

On more than one occasion, the Department has responded to a records request of mine with "no responsive records," and I have subsequently discovered — through an unrelated PRA — that a responsive Flock email did in fact exist at the time of the initial request. Due to this failure in the Department's own searching techniques, I requested all Flock emails sent to SMPD (@flocksafety.com and @mail.flocksafety.com, January 2020 to present), so I could perform my own searches.

Two examples of the search-failure pattern

In March 2026, in response to a PRA seeking records of changes to SMPD's Flock sharing list — including the addition and removal of University of the Pacific, a private institution whose access to SMPD's ALPR data violates California Civil Code § 1798.90.55(b) (SB 34) — the Department stated that no responsive records existed and that the Flock platform did not maintain a log of such changes. In April 2026, a separate PRA produced the Flock platform's event log directly. The records existed at the time of the Department's "no responsive records" answer.

In February 2026, in response to a PRA seeking records documenting how the Department determined which of 283 agencies to grant access to its ALPR data, the Department stated that no responsive records existed. A subsequent PRA produced Flock-generated "Camera Access Request" emails — including a February 2023 request from a North Carolina sheriff's office to an SMPD lieutenant — that were in Department inboxes at the time of that "no responsive records" answer. These emails included details of the process for granting or refusing access — substantively responsive to what the original PRA had asked. The current W012462-040226 production has surfaced an additional Camera Access Request email this week. Each batch produces more records of the type that the earlier search said did not exist.

To be clear about priority

This PRA is a backup, not my primary records request. Most of my open PRAs ask for records that Department policy already requires to exist: audit memos, documented agency-access approvals, verification logs. Some of those records don't yet exist — that's one of the things these PRAs have surfaced. But the city will need them regardless of my requests, and producing them serves the Department's own compliance posture, not just mine. The Flock email corpus exists only as a fallback.

The substantive PRAs ask about audits that state law has required since 2015 but for which no records exist before December 2025; the authorization for adding University of the Pacific to the ALPR sharing list in apparent violation of SB 34 and without documented authority from the required approver; and whether any hot-list alert verification records exist — the 5/5/26 letter says they don't, which is itself a finding the email production is positioned to test.

An apparently unauthorized change to law enforcement ALPR sharing configurations — adding a private institution in violation of state law — is an internal governance matter the Department should want to investigate regardless of my PRAs.

What the records returned so far show

The Department's stated framing of this PRA: _(Full 5/5/2026 response letter: https://github.com/none-below/sm-alpr/blob/main/assets/san-mateo-public-records/W012462-040226/W012462-040226_response_5.5.26.pdf)_

- * 211,872 documents identified as in scope
- * 10 hours per week of staff time allocated across all my open PRAs
- * "Good faith and diligent effort" affirmed in the 4/7, 4/21, and 5/5 letters
- * This PRA prioritized over my other open requests, because the Department says it "encompasses" them

What the timeline actually shows:

- * 4/2 to 4/21 (19 days): 8 records produced
- * 4/21 to 5/5 (14 days): 24 records produced
- * Total: 33 days, 32 records produced
- * All 32 are vendor marketing email (webinar invitations, product newsletters, "thank you for attending" notices) or auto-generated partner-agency camera-sharing notifications.

* The 4/7/26 letter stated that an initial batch had been "released and made available on the San Mateo Records Request Portal." On 5/5/26 the Department acknowledged this was not the case -- the initial batch was not actually posted until April 21 at 1:32 PM, a 14-day gap between the asserted release and actual availability.

* The 4/21/26 morning letter made the same "released and made available" claim. At 10:47 AM PST that day, no records were visible on the portal -- a fact I documented with a timestamped screenshot uploaded to the portal at 10:48 AM. Records appeared later that afternoon, after I flagged the absence twice.

The math:

* At 32 records per 33 days, completing the 211,872-document scope would take approximately 600 years.

* Taking the Department's own staffing claim at its most generous reading -- that the full 10 hours per week has been spent on this PRA alone -- that is roughly 1.5 hours of staff time per templated email reviewed.

The records produced are dominated by Flock-generated automated notifications -- "Camera Access Request from [Agency]," "[Agency] shared Flock cameras with you," "[Agency] has shared a Hot List with you" -- and bulk-mailing webinar invitations. Within each notification category, every instance is the same automated email with the agency name substituted in; review of any single instance establishes the disclosability of all of them. The Department has produced these one at a time across batches rather than as bulk releases of each category. Either the Department is reviewing identical automated emails individually -- which makes the 600-year pace the consequence of unnecessary individualized review and a waste of Department resources -- or it is producing each category piecewise, which has the effect of making it harder to detect whether specific sharing relationships are being withheld from the production. The Department's response should clarify which.

To remove any pretext for delaying my substantive PRAs under the framing that this request "encompasses" them, I'm asking the Department to deprioritize W012462-040226, address those PRAs first, and return to this one only after they're resolved. The request itself remains open. This change in priority would let the Department's stated 10 hours per week of public-records capacity be applied to records that go to oversight, rather than to the rolling production of vendor marketing email. In return, I am asking that the Department actually return the responsive records that exist on those PRAs -- not the "no responsive records" answers we have seen on records that demonstrably did exist.

If those substantive PRAs are fulfilled in good faith, I would withdraw W012462-040226 entirely, removing the 211,872-document scope from the Department's queue, as it would no longer be relevant.

My questions:

What is the review process being applied to these records, and what accounts for the per-record time?

* No redacted emails have appeared in any rolling batch, which suggests the 32 emails released are the full set the Department has actually reviewed, not a subset drawn from a larger corpus with withheld exempt portions. Under § 7922.525(b), the non-exempt portions of any withheld email should appear in the production; I raised this in my 4/21/26 follow-up -- the 5/5/26 response did not address it.

* If this pace is genuine, the Department's stated capacity cannot meet its records obligations. That is a staffing question.

* If individual review does not take this long, the 32-records-in-33-days pace reflects something other than the burden the Department has described. That is a process question.

* Either way, bulk classification by sender domain and subject pattern, and segregation of non-exempt metadata (From, To, Date, Subject) from email bodies, would let the Department close out the bulk of the 211,872 documents without per-record review. Neither approach appears to have been used.

Ultimately, the work my substantive PRAs are asking for -- audit memos, access authorization records, verification logs -- is largely the same work the Department would need to do to fulfill its existing obligations under state law and its own policies for operating this program. These are not additional burdens on top of the ALPR program; they are part of it.

I look forward to our meeting.

Brian

On 2026-05-05 10:27, Brian C wrote:

Dear Chief,

Thank you for the substantial time your records team -- Kelly O'Keefe and now Captain Maravillas -- has spent responding to my Public Records Act requests over the past three months. The work has been real, and I want to acknowledge it. I should also be candid that substantial work remains: open requests are on rolling production, and additional requests are likely as further gaps surface.

Most of this work would not be necessary if the underlying records already existed. The PRA process is currently doing the work the internal audit framework was supposed to do. SOP 205.1's posting requirement, Policy 462.8's external-agency approval files, and SOP 205.5.1's quarterly operator audits -- performed and documented in real time -- would moot whole categories of the requests the department is now spending substantial time on. The current volume reflects more than a decade of deferred audits, documentation, and postings surfacing through public records requests all at once. I'd like to use this letter to identify where that loop closes -- not by asking for any new policy or law, but by asking for consistent application of what the department has already committed to and what state law already requires.

Representations and practice. For more than a decade, across multiple ALPR platforms, the department's presentations to Council have described its program in terms of specific protective measures. At the September 2020 study session on police accountability, SMPD represented that "SMPD conducts regular audits to ensure access to the ALPR Databases are within policy." When Council approved the August 2023 Flock master services agreement, the staff report represented that the program uses "strictest industry standards with respect to how data is accessed and by whom" and shares with "NCRIC and allied County law

enforcement agencies." Neither representation has been corrected on the record, and none of the stated measures has been substantially implemented.

The records the department has since produced establish multiple gaps between law, policy, and practice:

- * Audits. Policy 462.6(c), renumbered to 463.6(c) in January 2023, requires audits "on a regular basis, as described in SOP 205." No formal audit records existed before December 2025; the audits performed since conform to neither state law nor department policy.
- * External-agency approval. Policy 463.8(b) (Dec 2025) requires that external-agency access requests be "reviewed by the ALPR Committee Captain or the authorized designee" before being fulfilled. An equivalent documented-review requirement has been on the books continuously since the original Policy 462 in 2012. Agencies are added through the Flock platform without documented review or retained records -- a process that, in February 2026, placed at least one agency on the list inconsistent with § 1798.90.55(b), identified only after a resident raised the issue.
- * Sharing scope. The August 2023 staff report described sharing with "NCRIC and allied County law enforcement agencies." The Flock transparency portal currently lists 283 organizations, spanning the state from Yuba County to San Diego and including ten District Attorney offices (none in San Mateo County), eleven campus and education police departments (most located outside San Mateo County), and -- until February 2026 -- at least one private university that does not qualify as a public agency under § 1798.90.5(f).
- * SOP 205 posting. Section 205.1 and Civil Code § 1798.90.51(b) require conspicuous public posting. SOP 205 was acknowledged unposted on March 3, 2026 -- meaning that for over six years, residents could not see the policy the department claimed to operate under. It has since been published in a combined manual not linked from the License Plate Readers page, in a manner not apparently compliant with SB 34.
- * Council process. The June 2020 presentation was a non-budgetary informational item that did not request or receive any approval; Council asked for a report-back "after a year of experience," not delivered in the nearly six years since. The first Council vote on the program was the August 2023 master services agreement, placed on the consent calendar, nearly three years after the system had been in operation and after the deployment had nearly doubled -- from twelve cameras to twenty-two -- without further Council action.

The compliance work that began in late 2025 -- the monthly audit memos, the new RTIC operational procedure (Procedure 1102), the December 2025 policy revision restricting sharing to California public agencies, and the new "internal and external" framing in the February and March memos -- represents real progress on each of these fronts. None of them is yet complete. Audits now exist, but the implemented audits review sharing configuration -- required by neither policy -- rather than the audits required by Policy 463.10 and SOP 205.5.1. The sharing scope has been narrowed by disabling out-of-state lookups, but the entity-type composition of the existing list has not been reviewed. Two months after the city acknowledged the SOP 205 posting as overdue and committed to publish it "as soon as possible," the document has been placed in a combined SOP manual on a section of the city website that is not linked from the License Plate Readers page -- not the conspicuous, standalone form required by Section 205.1 and § 1798.90.51(b). There is still no documented approval process for the 283 agencies already on the list. Two unaligned written ALPR policies are in force, neither one implemented as written, and the department's actual practices live outside both. Even taken together, the two policies still don't fully meet state law. The questions below are about completing that work.

Audit scope.

Two parallel audit requirements apply to the program, and the cycle of audits that began in December 2025 satisfies neither as written. Policy 463.10 -- titled "ALPR Data Search Audits," added December 2025 -- requires monthly audits of ALPR data searches by internal users and quarterly audits of searches by external California public agency users, documented as memoranda to the Chief of Police. SOP 205.5.1, in place since at least October 2019, requires quarterly audits of operator use of Flock and the other ALPR platforms, submitted to the Support Services Captain. The audit memos produced to date are monthly memoranda to the Chief, but they review Flock sharing configuration -- out-of-state toggles, network-lookup settings, user counts -- content neither policy requires. The February and March 2026 memos added "internal and external" framing to the same monthly format; the content remained sharing configuration. No audit responsive to either policy has been produced.

PRA W012160 returned "no responsive records" for the quarterly operator audits SOP 205.5.1 requires; PRA W012320 has returned "at this time there are no responsive records to your request" for the related SOP 205 search-activity audit records, while noting that "if any responsive records are located, we will further respond." If the required audits were being conducted, the records would be easy to find. When and how does the department intend to perform the data search audits Policy 463.10 requires and the operator audits SOP 205.5.1 requires?

Entity-type review.

University of the Pacific appeared on the department's Flock sharing list as of February 18, 2026, in apparent violation of state law. UOP's own Chief of Police confirmed in writing that UOP "is a private institution and therefore not subject to the CPRA." Civil Code § 1798.90.55(b) restricts sharing to "another public agency" (defined at § 1798.90.5(f)); Policy 463.8 adds that the public agency must be a California state or local agency. The January 2026 audit memo verified that out-of-state sharing was disabled -- a geographic check, not an entity-type check. The audit cycle covering the period when UOP was on the list did not surface it. What review is the department undertaking, or planning, to confirm that each of the remaining 282 organizations on the access list qualifies as a public agency under § 1798.90.5(f), and what does the department understand its continuing obligation under § 1798.90.55(b) to require?

SB 34 compliance plan.

Beyond the items above, the department also accesses data from privately-owned community cameras that falls outside the current audit scope, and no published timeline or accountable owner has been identified for closing the remaining gaps. Does the city intend to bring the ALPR program into full compliance with the department's own policies, AG Bulletin 2023-DLE-06, and SB 34, and if so, on what timeline and under whose accountability?

The constructive part.

Linking SOP 205 -- and the standalone Policy 463 PDF -- from the License Plate Readers page closes a PRA category. Documenting an entity-type review closes another. Conducting the data search audits Policy 463.10 requires and the operator audits SOP 205.5.1 requires closes a third; committing to the quarterly cadence the SOP itself prescribes prevents that gap from re-opening. Five San Mateo County peer cities -- Belmont, Foster City, Menlo Park, Pacifica, and South San Francisco -- already publish their Flock search audit data through the platform's CSV download. The same option is available for SMPD.

A realistic first step is to commit to a line-by-line review of the department's own policies, AG Bulletin 2023-DLE-06, and Civil Code §§ 1798.90.51-.55 against current practice -- with a documented process to ensure each requirement is met and stays met on an ongoing basis. I have compiled a more detailed inventory of these gaps, organized against those same authorities, in a findings document at https://github.com/none-below/sm-alpr/releases/latest/download/SMPD_ALPR_Findings.pdf. You are welcome to use it as a guide.

I will continue to file monthly Public Records Act requests for the documents that city policy and state law require -- requests that have largely returned "no responsive records" -- until the city's records show those policies are being followed.

The recent compliance work reads as an effort toward alignment with state law and the city's own policies. The gaps above and in my report show the work is not finished. I am not writing to question the value of ALPR -- the documented cases where it has helped solve serious crimes are real, and I want San Mateo to be a city tough on crime. Following the law is part of being tough on crime, not in tension with it. The department holds residents to the law; residents should be able to expect a department that holds itself to the laws protecting their privacy and rights. Closing the gaps above is what makes that standard real on both sides.

I would appreciate a written response in the next few weeks, even if interim. I am also available to meet if that would be useful to you or anyone on Council.

Thank you again for the records team's work.

Sincerely,

Brian [REDACTED]

San Mateo, CA 94402 [REDACTED]

Additional resources:

- * SMPD ALPR findings (PDF): https://github.com/none-below/sm-alpr/releases/latest/download/SMPD_ALPR_Findings.pdf
- * SMPD transparency report: <https://none-below.github.io/sm-alpr/report.html?agency=san-mateo-ca-pd>
- * San Mateo County sharing map: https://none-below.github.io/sm-alpr/sharing_map.html#san-mateo-ca-pd